

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                           |                                                       |                                               |                                            |
|--------------------------------------------------|-------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|--------------------------------------------|
| Investigator:<br>Peter J. Davis                  | Team:<br>Team # 8                   | CCRB Case #:<br>9903506   | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                  |                                     |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 08/03/1999 2:30 PM  | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>2/3/2001    | Precinct:<br>43                                       |                                               |                                            |
| Date/Time CV Reported<br>Wed, 08/04/1999 8:53 AM | CV Reported At:<br>CCRB             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 08/04/1999 8:53 AM |                                               |                                            |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |
|                    |      |              |
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |
|             |              |
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|             |              |
|             |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. SGT Paul McMahon    | 03375  | 899574 | 043 PCT |
| 2. An officer          |        |        |         |
| 3. Officers            |        |        |         |
| 4. POM Craig Crisfield | 15108  | 918523 | 043 PCT |
| 5. POM Sean Fogarty    | 21939  | 920293 | 043 PCT |

| Witness Officer(s)   | Shield No | Tax No | Cmd Name |
|----------------------|-----------|--------|----------|
| 1. POM Robert Lappin | 07079     | 917852 | 043 PCT  |
| 2. SGT Richard Cossa | 04665     | 892910 | 043 PCT  |

| Officer(s)           | Allegation                                                                 | Investigator Recommendation |
|----------------------|----------------------------------------------------------------------------|-----------------------------|
| A . SGT Paul McMahon | Force: Sgt. Paul McMahon used physical force against § 87(2)(b)            | A . Exonerated              |
| B . POM Sean Fogarty | Force: PO Sean Fogarty used physical force against § 87(2)(b)              | B . Unfounded               |
| C . POM Sean Fogarty | Abuse: PO Sean Fogarty threatened to arrest § 87(2)(b)                     | C . Unfounded               |
| D . POM Sean Fogarty | Discourtesy: PO Sean Fogarty spoke obscenely and/or rudely to § 87(2)(b)   | D . Unfounded               |
| E . SGT Paul McMahon | Force: Sgt. Paul McMahon used physical force against § 87(2)(b)            | E . Unfounded               |
| F . SGT Paul McMahon | Discourtesy: Sgt. Paul McMahon spoke obscenely and/or rudely to § 87(2)(b) | F . Unfounded               |

| <b>Officer(s)</b>       | <b>Allegation</b>                                                           | <b>Investigator Recommendation</b> |
|-------------------------|-----------------------------------------------------------------------------|------------------------------------|
| G . An officer          | Force: An officer used physical force against § 87(2)(b)                    | G . Unfounded                      |
| H . SGT Paul McMahon    | Abuse: Sgt. Paul McMahon threatened to arrest § 87(2)(b)                    | H . Unfounded                      |
| I . Officers            | Abuse: Officers threatened to arrest § 87(2)(b)                             | I . Unfounded                      |
| J . Officers            | Discourtesy: Officers spoke obscenely and/or rudely to § 87(2)(b)           | J . Unfounded                      |
| K . POM Craig Crisfield | Discourtesy: PO Craig Crisfield spoke obscenely and/or rudely to § 87(2)(b) | K . Unsubstantiated                |
| L . An officer          | Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b)         | L . Officer(s) Unidentified        |

## Synopsis

§ 87(2)(b) was arrested when officers responded to a 911 call stating that he was selling drugs in front of his building. He states that he was forcibly tackled and kicked in his head, causing a severe laceration. Additional allegations against the officers are provided by § 87(2)(b) and several witnesses. § 87(2)(g)

## Summary of Complaint

This complaint was made by telephone to CCRB on the morning of August 4, 1999 (UF-245, enclosure 4). § 87(2)(b) called to state that her son, § 87(2)(b) was in police custody after having been arrested the day before by officers from the 43<sup>rd</sup> precinct. She stated that her son was exiting a building when officers asked him what he had in his bag. He answered that he had marijuana, and the officers asked for it then started beating him. He blacked out and was treated with stitches on his head at the hospital.

On August 9, 1999, CCRB Inv. Machula and Investigative Manager Weisheit interviewed § 87(2)(b) and five witnesses during a field trip to the Soundview section of the Bronx. § 87(2)(b) provided a second statement to the undersigned investigator on May 10, 2000, § 87(2)(g). This second interview will be summarized at a later point in this report.

§ 87(2)(b) August 9, 1999 interview is summarized in enclosure 7. He states that in the hours before this incident, he was visiting a friend on the § 87(2)(b) of § 87(2)(b). At the time, he was aware that “there was supposedly some people selling drugs in the building.” As he descended the stairs from the § 87(2)(b) to the first, he noticed three or four people running “like there was something going on.” In order to avoid any trouble, he turned around to go back upstairs. Officer Fogarty, described as a white male, tall and husky, with light eyes, called after him, “come here!” § 87(2)(b) states that he did not know that this man was a police officer.

In his August 9, 1999 account, § 87(2)(g) He states at one point that Officer Fogarty grabbed him and tried to hit him, then tackled him to the § 87(2)(b) hallway; he later states that Officer Fogarty tackled him, then attempted to hit him with his radio (allegation B). He goes on to state that he knocked on a friend’s door (next to where he had been tackled), but Officer Fogarty, who was then attempting to handcuff him, yelled, “Don’t come out, ‘cause I got extra cuffs for you, too!” (allegation C). The officer then handcuffed him and pulled a bag of marijuana from his pocket, remarking, “Oh, is that what you were doing?” Although he was charged § 87(2)(b), § 87(2)(b) states that he only had a small amount of marijuana which was used for personal consumption.

As Officer Fogarty was looking at the bag of marijuana, Sergeant McMahon appeared in the hallway and placed his knee on § 87(2)(b) back. As § 87(2)(b) called out to people he knew on the hallway, the two officers repeatedly told him to “shut the fuck up” and struck him about the back and head (allegations B, D-F). A young woman from the § 87(2)(b) opened her door to see, but the officers shut her door. Immediately after this, Officer Fogarty kicked him in the head, causing a laceration above his eyebrow (allegation G). § 87(2)(b) continued to yell out to others that he was being abused, but the officers announced that those who opened their doors would be arrested (allegation I).

§ 87(2)(b) states that the police invented a story that he injured his head when he collided with a metal banister. “Come on,” he states, “I would have been dead” had he hit his head on the banister. His injury, he states, definitely came from being kicked by Officer Fogarty.

A number of officers and EMTs arrived and removed him to an ambulance. § 87(2)(b) did not allow the EMTs to treat him because he had been abused by the police. He wanted others to see his injuries. As the officers and EMTs led him through the crowd outside to the ambulance, Sergeant McMahon grabbed the chain between his handcuffs and violently pushed him toward the ambulance (allegation A). Sergeant McMahon, states § 87(2)(b), has a bad reputation on the streets as an abusive officer.

§ 87(2)(b) provided photographs of his injuries (enclosure 8) which were taken at § 87(2)(b)

### **Results of Investigation**

**Civilian witnesses:** On August 9, 1999, Inv. Machula, along with Investigative Manager Weisheit and a summer intern, interviewed five witnesses to this incident. § 87(2)(b) (enclosure 10) states that she observed § 87(2)(b) from the street as he walked from the front of § 87(2)(b) to the ambulance parked outside. She states that he struggled with the EMTs as they were attempting to place him into the ambulance.

§ 87(2)(b) (§ ), who lives at § 87(2)(b) apt. § 87(2)(b) states that he was watching television with § 87(2)(b) prior to this incident. § 87(2)(b) cousin, § 87(2)(b) called § 87(2)(b) and the latter left apartment § 87(2)(b) to meet him. About five to ten minutes later, he heard a noise from the hallway and went to his door to see what was happening.

Looking through his peephole, § 87(2)(b) saw Sergeant McMahon (who he identified by name) and a plain-clothes officer in the hallway with § 87(2)(b). In his account, Sergeant McMahon either struck § 87(2)(b) in the face, sending him to the floor, or struck him in the face after he was lying prone (allegation E). § 87(2)(b) backed away from his peephole then looked again, now seeing § 87(2)(b) leaning against a wall with blood covering his face. More officers had now arrived and were standing in front of the apartment doors, blocking any views from door peepholes. EMS arrived and treated § 87(2)(b) as Sergeant McMahon warned the § 87(2)(b) the building that they too would be arrested if they interfered (allegation H).

The officers § 87(2)(b) saw that day are part of the “sergeant’s crew” which constantly harasses people on § 87(2)(b) Avenue. The police, he states, assume that everyone in the area is involved in drugs.

§ 87(2)(b) (enclosure 12), of § 87(2)(b) apt. § 87(2)(b) was drawn to the hallway by § 87(2)(b) screaming. He states that he stood on the landing between the § 87(2)(b) and saw Officer Fogarty (described as a plain-clothes officer) and Sergeant McMahon (described as a uniformed officer) holding § 87(2)(b) prone on the floor. Sergeant McMahon was punching him on the back of the head (allegation E). Both officers were telling § 87(2)(b) to “shut the fuck up” (allegations D, F). Sergeant McMahon also announced that he would arrest anyone who entered the hallway (allegation H).

§ 87(2)(b) (enclosure 14) was descending the stairs of § 87(2)(b) when he encountered two unidentified officers who told him to “get the fuck out the building” (allegation J). He continued to the § 87(2)(b) where he saw § 87(2)(b) lying on the floor with two officers on top of him. Sergeant McMahon, identified by name and by physical description, was pinning § 87(2)(b) down and hitting him on the head (allegation E). Another officer, in plain clothes, was kicking § 87(2)(b) repeatedly about the head (allegation B). Approximately three other officers were in the building.

§ 87(2)(b) exited the building and saw § 87(2)(b) now bloody and injured, being escorted from the building. § 87(2)(b) called out that Sergeant McMahon was the officer responsible for his injuries, after which the sergeant violently pushed § 87(2)(b) head-first into the ambulance (allegation A).

§ 87(2)(b) (enclosure 15) states that she opened her door when she heard the loud commotion going on outside. She was told by a uniformed officer that what was happening was none of her business, and she shut her door. As she looked, she saw § 87(2)(b) leaning against a wall, handcuffed and bleeding.

§ 87(2)(b) was identified as a witness through police records indicating that he was arrested at the same date, time, and location as § 87(2)(b) (arrest report, enclosure 34). He was interviewed at the CCRB by Inv. Sullivan on August 20, 1999 (interview summary, enclosure 16).

§ 87(2)(b) states that he knows § 87(2)(b) (who he and others call “§ 87(2)(b)”) from several years ago, when both men were involved in the local drug trade. At the time of his August 20 CCRB interview, he had not seen § 87(2)(b) since August 3, the date of their arrest.

On that day, § 87(2)(b) was wearing gym shorts and a matching tank-top. He encountered § 87(2)(b) who was wearing a white t-shirt, shorts, and a red hat, on § 87(2)(b) Avenue and walked with him to § 87(2)(b) where § 87(2)(b) opened the front door with a key. They carried on a brief conversation as § 87(2)(b) stood in the lobby and § 87(2)(b) stayed by the door, his foot holding it open. After a few moments of conversation, the two men separated, § 87(2)(b) headed upstairs to see a cousin and § 87(2)(b) leaving the building.

Suddenly, § 87(2)(b) was stopped by two plain-clothes police officers. The first officer continued into the building, just catching the door before it shut. He approached § 87(2)(b) who was still in the lobby; the latter said something about having family in the building. The officer “grabbed” § 87(2)(b) and they both went off to the side. § 87(2)(b) lost sight of the two men as he was led away from the building by the second officer. More officers began to arrive and enter the building.

§ 87(2)(b) asked the second officer if he could be released, as he was not yet handcuffed and all that was found on him was \$20 and change. The officer told him to stay where he was, then, apparently upset by something he heard on the police radio, told him to “put your fuckin’ hands behind your back” (allegation K). He handcuffed him and placed him into a prisoner van with several other prisoners.

After about ten more minutes, during which more police officers and vehicles arrived, § 87(2)(b) was led out of the building and into an ambulance. About forty people were gathered outside the building as he made his way through. § 87(2)(b) was covered in blood from a wound on his head and he had something covering his mouth as he tried to spit. He did not appear to want to go into the ambulance, and cursed at the officers, “You fuckin’ faggots – you abuse, it’s just because of that badge!” One of the officers, who § 87(2)(b) could not identify beyond a vague physical description, replied, “Yeah, well I’ll take the fuckin’ badge off any time you want!” (allegation L). One officer appeared to be injured, and was limping out of the building.

§ 87(2)(b) saw § 87(2)(b) later, at central booking. He had changed his clothes but kept the bloody shirt, as he said, to show the judge. § 87(2)(b)’s charges § 87(2)(a) 160.50 were dismissed, and it is his understanding that the police went to the wrong address as they responded to a description of drug activity involving two individuals. Because the police had gone to the wrong building, § 87(2)(b)’s charges were dismissed. § 87(2)(b) states that he is unaware of § 87(2)(b) committing any crimes on August 3, 1999.

§ 87(2)(b) is an Emergency Medical Technician (EMT) assigned to Battalion 20 in the Bronx. He was interviewed at the CCRB on May 23, 2000 (interview summary, enclosure 17). During the interview, EMT § 87(2)(b) referred to the Ambulance Call Report prepared for this incident (enclosure 27). On August 3, 1999, EMT § 87(2)(b) and his partner, EMT § 87(2)(b) responded to § 87(2)(b) and found at least five to eight police vehicles already there. Arriving at the § 87(2)(b) the EMTs found § 87(2)(b) on the floor in handcuffs. They were told by the officers to be careful because he was spitting at people.

§ 87(2)(b) who was bleeding from his head, spat at the EMTs and said, “Get the fuck away from me!” His behavior was loud, bellicose, and arrogant. He refused to be touched or treated by the EMTs and bragged that if he had not fallen, he would have gotten away from the police. He told the police officers they were stupid because they thought he was selling drugs when he was actually buying drugs. “You stupid motherfuckers!” he said several times, “I wasn’t dealing, I was buying!” EMT § 87(2)(b) was surprised to hear § 87(2)(b) making such a confession.

When § 87(2)(b) refused to be immobilized or treated, EMT § 87(2)(b) returned the long-board to the ambulance and brought a wheelchair to the § 87(2)(b). By the time he returned, his partner had developed a rapport with § 87(2)(b) and the EMTs were able to walk him to the ambulance, where

they would be able to treat him. They had placed a medical mask on § 87(2)(b) to protect others from his spit, but he managed to remove it as they exited the building. § 87(2)(b) began to “put on an act” for the crowd outside the building, screaming that the officers had stepped on, punched, and kicked his face. EMT § 87(2)(b) thought this was strange because just minutes before, he had been bragging that he almost got away but he slipped and fell.

EMT § 87(2)(b) recalls that § 87(2)(b) had a small, square-shaped injury to his forehead § 87(2)(g). Apparently, § 87(2)(b) had run upstairs, away from the police officers, and was running back down when he hit his head on the banister post. Aside from the injury to his head, § 87(2)(b) reported no other physical problems.

As they neared the ambulance, one or more officers may have assisted in escorting § 87(2)(b) but none used any force against him. After some convincing, § 87(2)(b) finally entered the ambulance, where he continued bragging that the police were stupid (because they thought he was selling when he was buying), promising to get the officers fired, and claiming that he would get rich because of this incident.

§ 87(2)(b) was EMT § 87(2)(b)'s partner on August 3, 1999, and responded with him to § 87(2)(b). He was interviewed at the CCRB on May 23, 2000 (enclosure 18). He recalls § 87(2)(b) wearing long or short blue jeans and a white t-shirt, and his head was bleeding profusely. He was combative and violent, saying “Don’t touch me!” and “Take me out like this!”

The injury on § 87(2)(b) head was a severe laceration caused by blunt trauma. § 87(2)(b) claimed that the officers chased him, caught him, then slammed his head against a banister post. He did not say that he was punched or kicked. The officers claimed that they had chased him through the building until he slipped and hit his head. From what he could gather at the time, EMT § 87(2)(b) believed the officers.

§ 87(2)(b) said many times – “over and over and over” – that the police were stupid: “That’s how stupid you are,” he said to the officers, “I’m here buying drugs, not selling drugs.” He was “showboating,” being a “hot-shot.” He allowed EMT § 87(2)(b) to dress the wound, but not to clean up the blood. He was combative, screaming, and spitting on officers (but not on the EMTs), so the EMTs put a mask on his face. He refused to be immobilized on the long-board, and had to be walked downstairs.

EMT § 87(2)(b) and a sergeant from the 43 precinct walked him down the stairs. That sergeant was treated later for injuries to his buttocks, and was in uniform. EMT § 87(2)(b) did not observe this sergeant roughing the man up. Outside, § 87(2)(b) was screaming “look what they did to me!” as he yelled, spat, and cursed at the police officers. Once he was in the ambulance and away from the crowd, however, he became quiet.

EMT § 87(2)(b) does not believe that § 87(2)(b) was brutalized by the police. He believes that § 87(2)(b) like others in the neighborhood, is aware of the political situation and “knows how to play the public.”

**Medical records:** § 87(2)(a) PBH §18(6)

§ 87(2)(b)  
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§ 87(2)(a) PBH §18(6)

**Police records:** A number of police records obtained from the 43<sup>rd</sup> precinct provide background information as well as specific facts regarding the arrest of § 87(2)(b). Radio communications are listed in a sprint print-out and explained in a narrative form based on the print-out as well as tape-recorded communications (enclosure 29). An anonymous male caller who seems to be an older man states to 911 that people are selling drugs at § 87(2)(b). Three to four men, all male Hispanic, are selling drugs in the courtyard and lobby of the building, as they do nearly all the time, day and night. The drugs, states the older man, come from apartment § 87(2)(b). Two of the men selling drugs are identified by physical description: one is wearing a white t-shirt and short blue-jean pants, and the other is wearing brown shorts and a matching top.

At 2:02 PM, the 911 central dispatcher put this job over the radio, and the job was picked up by the 43<sup>rd</sup> precinct tracer unit. Nine minutes later, a tracer sergeant called to report an injured prisoner, and EMS is called to respond. Other units from the 43<sup>rd</sup> precinct responded several minutes later, after a 10-85 (call for assistance) was called by the tracer unit. Finally, at § 87(2)(b) a final disposition was called, with four arrests and one prisoner going to § 87(2)(b).

The 43<sup>rd</sup> precinct roll call for August 3, 1999 (enclosure 30) indicates that Sergeants Cossa and McMahon were supervising the tracer unit on that day, with eight police officers assigned to the unit. The command log for the day tour (enclosure 31) indicates that § 87(2)(b) returned from § 87(2)(b) at § 87(2)(b) and went on to Central Booking at 6:45 PM. An arrest log for the 43<sup>rd</sup> precinct (enclosure 32) indicates that § 87(2)(b) was arrested inside of § 87(2)(b) while witness § 87(2)(b) was arrested in front of the same building. Other arrests by the tracer unit on that day were effected at other locations. § 87(2)(b) was charged § 87(2)(a) 160.50

§ 87(2)(b) was charged § 87(2)(b)

A UF-61 complaint report filed against him (enclosure 38) states: "Deft. was found to possess a quantity of controlled substance... Deft. fit description of a radio run for drug sales. As P.O.'s approached deft. did flee, throwing narcotics to floor, when P.O.'s tried to apprehend deft., deft. did kick and punch wildly at P.O.'s causing deep bruises and physical to M.O.S's right thigh." This form also describes § 87(2)(b) physical appearance: male Hispanic wearing a red baseball hat, a white shirt, and blue shorts. A voucher invoice (enclosure 39) indicates that § 87(2)(b) was found with a glassine of "alleged heroin." [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Line-of-duty injury paperwork was also filed as a result of this incident. § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

**Final statement by** § 87(2)(b) Having received and reviewed the medical and police documents summarized above, the undersigned visited § 87(2)(b) at Rikers Island CIFM facility, where he was serving a sentence on an unrelated case. § 87(2)(g)

§ 87(2)(g) This interview is summarized in enclosure 9.

In this second statement, § 87(2)(b) explains the incident as such: He was smoking marijuana at § 87(2)(b)'s apartment (§ 87(2)(b)) #§ 87(2)(b) for approximately 45 minutes. He left the apartment and began to walk down the stairs when Officer Fogarty (identified by physical description only) called out to him. Because he had a small bag of marijuana in his pocket, he ran from the officer as he looked back, only to be tackled from behind by Sergeant McMahon (identified by name and by physical description) (allegation A). Officer Fogarty ran up the stairs and assisted in handcuffing him. § 87(2)(b) resisted being handcuffed because the marijuana was still in his hand, so Sergeant McMahon stood up and kicked his head in the presence of several other officers (allegation G), causing the severe laceration noted above.

§ 87(2)(g) § 87(2)(b) insists that he was not in the lobby of the building when the officers arrived; that he was not with § 87(2)(b) that he does not have keys to that building; that § 87(2)(b) does not sell drugs from apartment § 87(2)(b) and that the EMTs were either lying or were misinformed when they wrote "I fell and hit my head" on the Ambulance Call Report. He admits to threatening to spit on the officers and EMTs and telling them he had AIDS, and he reiterates his allegation that Sergeant McMahon used a great deal of force in pushing him toward the ambulance while outside on the street.

**Officer statements:** Five officers assigned to the 43<sup>rd</sup> precinct tracer unit were interviewed in connection with this case. **Sergeant Richard Cossa**, one of two supervisors assigned to the tracer unit, was interviewed at CCRB on July 26, 2000 (enclosure 20). His memo book records this incident as such: "1615 [hours] 10-10 drug sales § 87(2)(b) foot pursuit § 87(2)(b) § 87(2)(b) Perp fell to ground causing injury to perp and Sgt McMahon... 1630 10-85 .... 1730 1 MOS to § 87(2)(b)" Sergeant Cossa was in uniform and was assigned to a marked vehicle with Officer Crisfield. He and Sergeant McMahon were supervising a covert narcotics operation being carried out by the tracer unit. § 87(2)(b) the scene of § 87(2)(b) arrest, was not a target of this operation.

Sergeant Cossa and Officer Crisfield responded to a call of 10-10 (possible crime) for drug sales at § 87(2)(b) but they arrived after Sergeant McMahon and Officer Fogarty. Sergeant Cossa does not recall whether Officers Lappin and Scopino, who had been on a nearby rooftop in plain clothes, came inside the building or searched outside for drugs. When he entered the building and reached the § 87(2)(b) he found Sergeant McMahon and Officer Fogarty standing in the hallway, with § 87(2)(b) bleeding as he sat propped against a wall. No other officers were present at this time. He was told by Sergeant McMahon that after a foot chase through the building, the sergeant tackled § 87(2)(b) and they both fell to the ground. The sergeant injured his buttocks and § 87(2)(b) received a cut on his head.

During this July 26 CCRB hearing, the undersigned presented Sergeant Cossa with the line-of-duty injury witness statement § 87(2)(b)

§ 87(2)(b) While he had been confident in his memory of the incident up to that point in the hearing, Sergeant Cossa now said that "after reading that, I'm not 100% sure now."



Sergeant Cossa goes on to state that he and the other officers remained in the hallway for about fifteen minutes while EMS attempted to treat § 87(2)(b). He was extremely combative, spitting blood at the officers and claiming to be infected with “the monster,” which is AIDS. EMS put a mask over his face, but he removed it with his shoulder and continued to spit and curse, refusing to be treated or cleaned up by EMS. He admitted to using and possessing heroin but denied selling drugs. There were no problems with civilians in the hallway, and no officer cursed at or threatened to arrest any civilians. As they led § 87(2)(b) outside, the neighborhood had “heated up” and the crowd “went berserk” upon seeing the blood streaming from § 87(2)(b) wound. The situation nearly developed into a riot as § 87(2)(b) yelled that he had been beaten by the police. People were throwing objects at the officers. Owing to his resistance, it was necessary for some officers to use force to get § 87(2)(b) into the ambulance.

Sergeant Cossa believes that § 87(2)(b) is a drug dealer, possibly the manager of the drug operation at § 87(2)(b). Officers from his tracer unit have arrested him many times, both before and since this August 3 incident. On that day, Sergeant Cossa recalls, § 87(2)(b) was threatening that he would “have our jobs.”

**Officer Sean Fogarty** was in plain clothes on August 3, 1999, making Street Narcotics (SNEU) observations with Officer Lappin (also in plain clothes) from the rooftop of 1101 § 87(2)(b) Avenue. He was interviewed at the CCRB on July 26, 2000 (interview summary, enclosure 22). His memo book indicates that he responded to a radio run for drug sales at § 87(2)(b) and was given descriptions of two individuals: one male Hispanic with blue shorts and a white shirt, and one male Hispanic with a brown short outfit. Officer Fogarty’s interview narrative closely follows the detailed entry made in his memo book and can be summarized as such:

Officer Fogarty responded with Officer Lappin to § 87(2)(b) and observed § 87(2)(b) exiting the lobby of the building. He matched the description of a male Hispanic wearing brown shorts and a matching shirt. When stopped, he told the officers that he was there to “cop,” or buy drugs. Officer Lappin held § 87(2)(b) while Officer Fogarty reached the building’s front door, just catching it before it shut. He made eye contact with § 87(2)(b) who was wearing blue shorts and a white t-shirt; § 87(2)(b) immediately ran up the left-side stairway.

Officer Fogarty chased § 87(2)(b) up the left-side stairs to the § 87(2)(b) across the hallway, and back down the right-side stairway, reporting his movements over point-to-point radio to the tracer team. Between the § 87(2)(b), § 87(2)(b) jumped over the rail and landed directly on top of Sergeant McMahon, who was ascending the stairway. He tried to get up and escape, but he was tackled by Officer Fogarty and Sergeant McMahon. All three landed on the § 87(2)(b) hallway. During these few seconds of physical struggle, Sergeant McMahon injured his buttocks and § 87(2)(b) cut his forehead on the cap of the banister post.

The two officers handcuffed § 87(2)(b) with some difficulty, though they did not strike him in any way. Officer Fogarty states that he may have said, “Get your hands behind your fuckin’ head!” because § 87(2)(b) was struggling against the officers. His strong tone of voice helped him to quickly restrain § 87(2)(b). Moments later, Sergeant Cossa and Officer Crisfield arrived, possibly with Officer Lappin. EMS arrived and attempted to treat § 87(2)(b) who was spitting at the officers and claiming to have “the monster,” or AIDS. He promised to get the officers fired by calling IAD (Internal Affairs) and called the officers “fuckin’ pigs.” He told the EMTs that he was buying drugs, not selling, and refused to let them clean him up because, as he stated, he wanted others to see what the police did to him.

Several civilians opened their doors into the hallway and were told by the officers to go back inside. The officers did not curse at or threaten the civilians. Outside, § 87(2)(b) yelled out to the crowd which had gathered, “Look what they did to me!” exacerbating an already tense “crowd control” situation. The officers had to lift the combative § 87(2)(b) into the ambulance.

Officer Fogarty is familiar with § 87(2)(b) as a known drug dealer from many arrests both before and after this August, 1999 incident. His memo book states that while processing the arrests at the station

house, § 87(2)(b) stated he had bought heroin in location from § 87(2)(b) before and was there to do the same again. Also stated he saw § 87(2)(b) run on me.”

**Officer Craig Crisfield** was interviewed at the CCRB on July 26, 2000 (interview summary, enclosure 23). He was assigned as the operator for Sergeant Cossa and responded with him to § 87(2)(b). As they arrived, Officer Lappin was outside the building with an apprehended individual while Officer Fogarty was chasing another suspect inside the building. Officer Lappin handed the individual to Officer Crisfield and Sergeant Cossa and followed Officer Fogarty inside. Officer Crisfield field-frisked the individual § 87(2)(b) who was claiming his innocence but not physically resisting. They remained outside for a few moments until Sergeant McMahon, who was inside the building, called for assistance.

Officer Crisfield handcuffed § 87(2)(b) to the push-bumper of the RMP; he did not tell him to “get your fuckin’ hands behind your head” or otherwise curse at him. He and Sergeant Cossa rushed inside to the § 87(2)(b), where they found Sergeant McMahon standing next to the bleeding § 87(2)(b).

§ 87(2)(g)  
Several people inside the building were told by the officers to “let us do what we gotta do,” but no officers cursed at the civilians. Officer Crisfield did not witness § 87(2)(b) sustaining his injury, but he was told that § 87(2)(b) fell and hit his head on a banister post.

**Officer Robert Lappin** (August 4, 2000 interview, enclosure 25) is familiar with § 87(2)(b) from prior experience and refers to him as § 87(2)(b). He was working in a plain-clothes capacity at an observation post, and recalls observing § 87(2)(b) entering § 87(2)(b) on August 3, 1999, to make drug deals. He does not recall which officer he was working with. He does not recall a radio run indicating drug sales at that location, but suspects that § 87(2)(b) ran into the building when he saw officers on the street, prompting the chase. Officer Lappin recalls seeing Officer Fogarty and Sergeant McMahon running into the building, and himself running after them to assist. As he passed the front of the building he saw Officer Crisfield with an individual, but he cannot recall any details about that individual.

Entering the building alone, he stopped in the lobby to listen for activity. He ascended the stairs and found Officer Fogarty and Sergeant McMahon standing above § 87(2)(b) who was rear-cuffed and lying prone on the hallway floor. He did not see any physical interaction between the officers and § 87(2)(b) but he recalls § 87(2)(b) cursing, threatening to spit on the officers, and saying that he had AIDS. He was bleeding from a cut somewhere on his body. Sergeant McMahon told Officer Lappin that because he was in plain clothes, he should get off the “set,” or arrest area. He walked off and proceeded to the 43<sup>rd</sup> precinct station house.

When, during his August 4, 2000 CCRB hearing, Officer Lappin was presented with a line-of-duty injury witness statement indicating that he actually witnessed the physical arrest of § 87(2)(b) Officer Lappin replied that he has no recollection of writing the statement or witnessing the incident it describes.

**Sergeant Paul McMahon** (August 14, 2000 interview, enclosure 26) recalls that his operator on the date in question was Officer Crisfield. He recalls responding to § 87(2)(b) with Officer Crisfield and possibly instructing him to stay outside with another suspect. Officer Fogarty had already run inside the building after § 87(2)(b) possibly with Officer Lappin, so Sergeant McMahon made his way inside.

The other officer or officers had chased § 87(2)(b) up the stairs to the left, so Sergeant McMahon went right. As he reached § 87(2)(b), § 87(2)(b) jumped over a railing and landed in the hallway; Sergeant McMahon immediately tackled him from behind. § 87(2)(b) collided with the banister post, throwing them off balance, and they landed on the floor with § 87(2)(b) on top. The sergeant was able to turn him over and, with the help of Officer Fogarty and possibly Officer Lappin, handcuffed the combative defendant. No officer punched, kicked, or otherwise struck § 87(2)(b) at any time during this struggle.

Sergeant McMahon noticed that § 87(2)(b) was bleeding from his head and seated him against the wall. He called for more officers and for EMS, who arrived shortly. Sergeant McMahon cannot recall which officers arrived at what points during this incident, and states that he was not involved in writing the witness statements that accompanied his line-of-duty injury paperwork. § 87(2)(b) was “completely combative the whole time” as EMS attempted to treat him in the hallway. He cursed, spat, and threatened to infect the officers with “the monster” (AIDS). He screamed that he was being beaten and refused to allow EMS to treat him. He said things like, “You stupid motherfuckers – I just came to buy drugs, I’m not the dealer.”

There was no problem with civilians in the building and no officer cursed at or threatened to arrest any civilians. Outside, a crowd had gathered and the situation quickly became difficult. Sergeant McMahon states that his tracer team is very active in the area, making numerous drug arrests on that very street; people know the officers by name, and were calling them by these as well as many other names as they emerged from the building with the bloody § 87(2)(b). The sergeant worked vigorously to maintain crowd control in a situation where people were coming very close to the officers and throwing “airmail” at them. § 87(2)(b) was making the situation worse by claiming to have been beaten and by struggling to escape the officers’ grip. Sergeant McMahon held his arm tightly but did not twist his arm or otherwise use excessive force. The sergeant feels that § 87(2)(b) was putting on a show for the crowd: “He had his audience, and he played it.”

### Conclusions and Recommendations

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) and § 87(2)(b) were stopped by Officers Fogarty and Lappin based on a detailed physical description to which they matched almost exactly. The officers stopped § 87(2)(b) then Officer Fogarty entered the building to pursue § 87(2)(b) § 87(2)(g)

It is well documented in police records and in the officers’ statements that § 87(2)(b) ran up the left-side stairway to the § 87(2)(b), ran across to the other side, then descended the stairs until he collided with Sergeant McMahon. Sergeant McMahon and (possibly) Officer Fogarty tackled him to the ground and handcuffed him as he struggled and fought against the officers. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b), § 87(2)(b), and § 87(2)(b) offered versions of this incident in which they claim to have witnessed Sergeant McMahon and Officer Fogarty beating § 87(2)(b) in the second floor hallway. They also make a number of other allegations of discourtesy and threats of arrest. § 87(2)(b) states that § 87(2)(b) was struck while either standing or lying down, § 87(2)(b) claims to have seen Sergeant McMahon punching § 87(2)(b) on the floor and § 87(2)(b) claims that Officer Fogarty was repeatedly kicking § 87(2)(b) on the head.

§ 87(2)(g)

§ 87(2)(g)

**Allegation (A)**, which states that Sergeant McMahon used excessive force when he tackled § 87(2)(b) to the floor, is recommended for closure as *exonerated*. This allegation also addresses the force used by Sergeant McMahon outside § 87(2)(b) for which the same disposition is recommended. **Allegation (B)**, which states that Officer Fogarty tackled § 87(2)(b) attempted to hit him with his radio, then punched him as he lay on the floor, should be closed as *unfounded*. **Allegation (C)**, which states that Officer Fogarty threatened to arrest § 87(2)(b) is recommended for closure as *unfounded*, as are **allegations (H) and (I)**, which allege the same misconduct on the part of Sergeant McMahon and unspecified other officers.

**Allegations (D) through (F)** state that Officer Fogarty and Sergeant McMahon punched § 87(2)(b) on the head and told him to shut the fuck up. § 87(2)(b), § 87(2)(g), § 87(2)(c)

it is recommended that the Panel consider them *unfounded*.

**Allegation (G)** addresses the primary concern of this investigation, which is the question of how § 87(2)(b) sustained the severe laceration to his forehead. He stated in August, 1999 that Officer Fogarty kicked his head; he then stated in May, 2000 that it was in fact Sergeant McMahon who kicked him.

§ 87(2)(g)

This allegation is charged to “an officer” and is recommended for closure as *unfounded*.

**Allegation (J)** states that two or more officers spoke rudely to § 87(2)(b) when they told him to “get the fuck out the building.” § 87(2)(g)  
it is recommended that the Panel close his allegation as *unfounded*.

**Allegations (K) and (L)** were stated by witness § 87(2)(b) § 87(2)(g)  
He states in allegation (K) that Officer Crisfield spoke rudely to him when he said, “put your fuckin’ hands behind your back.” § 87(2)(g)  
allegation (K) is recommended for closure as *unsubstantiated*. Allegation (L) states that an officer cursed at § 87(2)(b) outside § 87(2)(b) This allegation should be closed as *officer unidentified*.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: